N244

# Application notice

For help in completing this form please read the notes for guidance form N244Notes.

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| **Name of court** County Court at Lincoln | **Claim no.** 019JE538 |
|---|---|
| **Fee account no.** (if applicable) | **Help with Fees – Ref. no.** (if applicable) |
| | H W F – – – |
| **Warrant no.** (if applicable) | |
| **Claimant's name** (including ref.) MSEM UK LTD | |
| **Defendant's name** (including ref.) Fishbone Construction LTD | |
| **Date** | 03/11/2026 |

1. What is your name or, if you are a legal representative, the name of your firm?
   Fishbone Construction Ltd

2. Are you a ☐ Claimant ☑ Defendant ☐ Legal Representative
   ☐ Other (please specify)

   If you are a legal representative whom do you represent?

3. What order are you asking the court to make and why?
   The Defendant asks the court to extend the time in paragraph 2 of the order of 12 August 2026 for the Defendant to send its witness statements and documents to the court and the Claimant, to 4pm on Friday 6 November 2026. This updated application replaces the Defendant's application of 21 October 2026. Reasons: see section 10.

4. Have you attached a draft of the order you are applying for? ☐ Yes ☑ No

5. How do you want to have this application dealt with? ☐ at a hearing ☑ without a hearing
   ☐ at a remote hearing

6. How long do you think the hearing will last? 0 Hours 15 Minutes
   Is this time estimate agreed by all parties? ☐ Yes ☑ No

7. Give details of any fixed trial date or period
   Trial: 19 November 2026 at 10:00 am, Cou

8. What level of Judge does your hearing need?
   District Judge

9. Who should be served with this application?
   The Claimant, MSEM UK Ltd

9a. Please give the service address, (other than details of the claimant or defendant) of any party named in question 9.
   3 Oakdale Close, Grantham, Lincolnshire NG31 8EZ (email: Egita@msemukltd.co.uk; mikheil@msemukltd.co.uk)

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10. What information will you be relying on, in support of your application?

- [ ] the attached witness statement
- [ ] the statement of case
- [x] the evidence set out in the box below

If necessary, please continue on a separate sheet.

1. The order of District Judge Armitage (notice dated 27 August 2026) requires both parties to send their witness statements and documents to the court and each other by 4pm on 21 October 2026.
2. The Defendant is a small company with no legal representative.
3. On 21 October 2026 the Defendant applied (form N244) to extend that time to 28 October 2026. On 29 October 2026 the court confirmed by email that this application is on its file and that payment of the fee is awaited. On 3 November 2026 the court telephoned the Defendant and asked for an updated N244, and then payment. This is that updated application. It replaces the application of 21 October 2026, and the Defendant will pay one fee.
4. The Defendant received a very large package of documents from the Claimant and needed time to read and answer it.
5. The Defendant had not sent its statements and documents by 28 October 2026. On 28 October 2026 it asked two site witnesses for their accounts. One witness, who is now abroad, signed his statement on 3 November 2026. The Defendant's own statement is being finalised.
6. The Defendant will send its statements and documents to the court and the Claimant by 4pm on Friday 6 November 2026, 13 days before the trial. The trial on 19 November 2026 at 10:00 am is not affected.

11. Do you believe you, or a witness who will give evidence on your behalf, are vulnerable in any way which the court needs to consider?

☐ Yes. Please explain in what way you or the witness are vulnerable and what steps, support or adjustments you wish the court and the judge to consider.

☑ No

## Statement of Truth

**I understand that proceedings for contempt of court may be brought against a person who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.**

☐ **I believe** that the facts stated in section 10 (and any continuation sheets) are true.

☐ **The applicant believes** that the facts stated in section 10 (and any continuation sheets) are true. **I am authorised** by the applicant to sign this statement.

**Signature**

☐ Applicant

☐ Litigation friend (where applicant is a child or a Protected Party)

☐ Applicant's legal representative (as defined by CPR 2.3(1))

**Date**

Day | Month | Year

Full name

Andrejus Prutkovas

Name of applicant's legal representative's firm

If signing on behalf of firm or company give position or office held

Director

Applicant's address to which documents should be sent.

Building and street

6 Beverley Place

Second line of address

Town or city

Wallsend

County (optional)

Tyne and Wear

Postcode

| N | E | 2 | 8 | 7 | B | H |
|---|---|---|---|---|---|---|

If applicable

Phone number

07966 347462

Fax phone number

DX number

Your Ref.

Email

info@fishboneconstruction.co.uk